

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION FOR EXPEDITED RELIEF CONCERNING
PERMISSION TO EXPAND PAGE LIMITS OF THE PARTIES’ BRIEFING AS TO
COMPLAINANT’S OPENING BRIEF**

Pursuant to Rule 214 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”) and 46 C.F.R. Sections 502.69, 502.102, and 502.214, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, hereby submits this Motion for Expedited Relief Concerning Permission to Expand Page Limits of the Parties’ Briefing as to Complainant’s Opening Brief (the “Motion”), which seeks permission from the Presiding Officer in this case to expand the page limits in Complainant’s Opening Brief, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited’s (together, “Respondents” and, collectively with Complainant, the “Parties”) opposition thereto, and Complainant’s reply thereto (together, the “Briefings”) from eighty (80) pages in length to one hundred and forty (140) pages in length.

LEGAL STANDARD

Rule 214(e) of the Rules, 46 C.F.R. Section 502.214(e), provides:

All briefs filed pursuant to this section must ordinarily be limited to eighty (80) pages in length, exclusive of pages containing the table of contents, table of

authorities, and certificate of service, unless the presiding officer allows the parties to exceed this limit for good cause shown and upon application filed not later than seven (7) days before the time fixed for filing of such a brief or reply.

Furthermore, Rule 10 states that the rules in Section 502, save Section 502.11 and 502.221, “may be waived by the Commission or the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires.” 46 C.F.R. Section 502.10.¹

PROCEDURAL POSTURE

Pursuant to the 4th Revised Scheduling Order, dated August 23, 2024 (the “Scheduling Order”), discovery in this action closed on November 10, 2024, and Complainant’s Opening Brief is due December 10, 2024. As part of the discovery process, in addition to producing hundreds of thousands of pages of documents, the Parties conducted thirty-one depositions, including three expert depositions. These depositions created a record of thousands of pages of transcripts and over four hundred exhibits.

Pursuant to 46 C.F.R. Section 502.102 and in light of Complainant’s December 10, 2024 deadline to file its Opening Brief, good cause exists to treat the Motion on an expedited basis.

CONFERENCE OF COUNSEL

On December 2, 2024, Complainant asked Respondent’s counsel whether Respondents would consent to the proposed enlargement. Respondents refused and stated that they would oppose any enlargement of page limits.

¹ The page limits set forth in Rule 10 are a result of agency rulemaking and are not based on or found anywhere in the Shipping Act or associated statutes. To the extent that such rules operate to constrain Complainant’s rights under the Shipping Act or operate as a denial of due process, they may be subject to challenge without administrative deference under *Loper Bright Enters. v. Raimondo*, No. 22-4751, 2024 WL 3208360 (U.S. June 28, 2024).

ARGUMENT

Given the voluminous record in this case and the number of material issues to be addressed in the Parties' Briefings, there is good cause to extend the Commission's page limits on the Briefings by 75 percent, from 80 to 140 pages. This enlargement would serve to "prevent undue hardship [and] manifest injustice" that would arise from limiting the Parties' ability to fully address the issues raised in this matter. Moreover, there is no potential prejudice to Respondents, because Complainant proposes that Respondents' brief be similarly expanded.

As previously noted, Complainant's Opening Brief is due on December 10, 2024, just one month following the close of discovery in this action. Complainant has complied with 46 C.F.R. Section 502.214 by submitting the instant motion at least one week before the December 10, 2024 opening brief deadline.

Applying the "good cause" standard, the Commission has previously granted permission to expand page limits in light of a case's "extensive history and the size of the record". *See, e.g., The Government of the Territory of Guam, et al. v. Sea-Land Service, Inc. and American President Lines, Inc.*, Docket No. 89-26 (Order Granting Motion for Waiver of Page Limit Requirements for Filed Exceptions and of the Five-Day Advanced Filing Requirement), 2004 WL 100346 at *1 (F.M.C.) (Jan. 15, 2004). In the present case, the sheer volume of documents and testimony produced in discovery requires an enlargement of the usual page limits.

Moreover, an eighty-page brief would also be insufficient to address all of the relevant issues in this action. Complainant asserts five separate claims against Respondents for violations under the Shipping Act, each of which will require a comprehensive analysis of the full circumstances underlying each element of each claim. For example, Count V alleges that Respondents' actions constitute unreasonable refusals to deal or negotiate with BBY in violation

46 U.S.C. Section 41104(a)(10), a type of claim that the full Commission recently described as “factually driven and determined on a case-by-case basis.” *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11 (Order Affirming Initial Decision), slip op. at 17-18, August 27, 2024 (citing *Canaveral Port Authority - Possible Violations of Section 10(b)(10), Unreasonable Refusal to Deal or Negotiate*, Docket No. 02-02, 29 S.R.R. 1436, 2003 WL 723336, at *18 (FMC Feb. 24, 2003)); see also *Ports Am. Chesapeake, LLC v. APS E. Coast*, FMC Docket No. 23-04, 2023 WL 5375588, at *9 (ALJ Aug. 16, 2023) (section 41102(c), such as Counts I and II here, require factual evidence demonstrating that “practice or regulation is unjust or unreasonable”); 46 C.F.R. § 545.5(c)(1) (claims relating to “demurrage and detention practices and regulations [require] the Commission [to] consider the extent to which demurrage and detention are serving their intended primary purposes as financial incentives to promote freight fluidity.”); *Evergreen Shipping Agency (Am.) Corp. v. Fed. Mar. Comm’n*, 106 F.4th 1113, 1117-18 (D.C. Cir. 2024) (describing per diem claims as requiring a “circumstantial, fact-bound inquiry”).

Accordingly, for the reasons discussed above, Complainant submits that an enlargement of the page limit for the Parties’ trial briefs from 80 to 140 pages is warranted, and there would be no prejudice to Respondents, which would be entitled to the same enlargement as Complainant.

CONCLUSION

For the foregoing reasons, Complainant respectfully moves on an expedited basis, pursuant to 46 C.F.R. Section 502.102, for an order enlarging the page limits for the Parties' trial briefs from eighty (80) pages in length to one hundred and forty (140) pages in length.

Dated: December 3, 2024

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

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Dated: December 3, 2024

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